

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Date Filed:

-----X
LAZETTE WATKINS,

Plaintiff designates Kings
County as the place of Trial

Plaintiff,

- against -

The basis of Venue is
CPLR 504(3)

SUMMONS

CITY OF NEW YORK, ANTHONY J. CAROZZA,
NYPD Detective, Shield # unknown, Individually and
in his Official Capacity; ABRAHAM SANABRIA,
NYPD Captain, Shield # unknown, Individually and
in his/her Official Capacity; John Does, NYPD
Captain(s) 1-4 and Jane Roes 1-4, Individually and in
their Official Capacities; John Does, NYPD Sergeant(s)
1-4 and Jane Roes 1-4, Individually and in their
Official Capacities; John Does, NYPD Police
Officer(s) 1-4 and Jane Roes 1-4, Individually and in
their Official Capacities; Commanding Officer of 77th
Precinct, Individually and in his/her Official Capacity;
JOHN BUTTACAVOLI, NYPD Deputy Inspector,
Tax ID #918799, Individually and in his Official
Capacity,

Defendants.

-----X
To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of the service of this summons, within thirty (30) days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint together with the costs of this action.

Dated: New York, New York
September 26, 2019



THE LAYTON LAW FIRM, PLLC
PAUL THOMAS LAYTON, ESQ.
Office & PO Address
30 Vesey Street, Suite 1801
New York, New York 10007
(917) 923-4287
laytonlaw10007@gmail.com

To:

CITY OF NEW YORK
One Center Street
New York, New York

NYPD Detective ANTHONY J. CAROZZA, Shield # Unknown

NYPD Captain ABRAHAM SANABRIOS, Shield # Unknown

Commanding Officer of 077 Precinct, Shield # Unknown

NYPD Deputy Inspector JOHN BUTTACAVOLI, Tax ID #918799,
One Police Plaza
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LAZETTE WATKINS,

Plaintiff,

Index:

Date Filed:

VERIFIED COMPLAINT

- against -

CITY OF NEW YORK, ANTHONY J. CAROZZA,
NYPD Detective, Shield # unknown, Individually and
in his Official Capacity; ABRAHAM SANABRIA,
NYPD Captain, Shield # unknown, Individually and
in his/her Official Capacity; John Does, NYPD
Captain(s) 1-4 and Jane Roes 1-4, Individually and in
their Official Capacities; John Does, NYPD Sergeant(s)
1-4 and Jane Roes 1-4, Individually and in their
Official Capacities; John Does, NYPD Police
Officer(s) 1-4 and Jane Roes 1-4, Individually and in
their Official Capacities; Commanding Officer of 77th
Precinct, Individually and in his/her Official Capacity;
JOHN BUTTACAVOLI, NYPD Deputy Inspector,
Tax ID #918799, Individually and in his Official
Capacity,

Defendants.

-----X
The Plaintiff, LAZETTE WATKINS, by her attorneys, THE LAYTON LAW FIRM,
PLLC, PAUL THOMAS LAYTON, ESQ., complaining of the defendants, CITY OF NEW
YORK, and, NYPD Detective ANTHONY J. CAROZZA, Individually and in his Official
Capacity; and, NYPD Captain ABRAHAM SANABRIA, Individually and in his Official
Capacity; NYPD Captain(s) John Doe(s) 1-4 and Jane Roe(s) 1-4, Individually and in their Official
Capacities; NYPD Officer(s) John Doe(s) 1-4 and Jane Roe(s) 1-4, Individually and in their

Official Capacities; NYPD Sergeant(s) John Doe(s) 1-4 and Jane Roe(s) 1-4, Individually and in their Official Capacities; and, Commanding Officer of 77th Precinct, Individually and in his/her Official Capacity; and, NYPD Deputy Inspector John Buttacavoli, Tax ID #918799, Individually and in his Official Capacity upon information and belief, and at all times hereinafter mentioned, alleges:

PRELIMINARY STATEMENT

1. This is a civil action against the defendants based on and arising out of the wrongful acts and omissions of the CITY OF NEW YORK (hereinafter "defendant CITY") and certain employees and agents of these officers named herein, in which Plaintiff LAZETTE WATKINS (hereinafter "Plaintiff") seeks relief for the violation of her rights secured under the common law of the State of New York and under the Civil Rights Act (42 U.S.C. Sections 1983 and 1985).

2. The plaintiff—a New York City Police Department School Safety Agent—was illegally detained, arrested, and falsely charged resulting in compensatory damages, humiliation, emotional distress, and damage to her career.

VENUE

3. Venue is proper pursuant to New York State Civil Procedure Laws and Regulations Section 504(3) as Plaintiff is a resident of the State of New York, County of Kings; the acts complained of occurred within Kings County of the City and State of New York.

PARTIES

4. Plaintiff, LAZETTE WATKINS, is a citizen and resident of the United States and at all relevant times herein was a resident of the State of New York, County of Kings.

5. Defendant CITY is and was at all relevant times herein, a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a

police department, which acts as its agents in the area of law enforcement to members of the public and for which it is directly responsible.

6. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to public consumers of the services provided by the New York Police Department (hereinafter "NYPD").

7. Defendants NYPD Detective ANTHONY J. CAROZZA, NYPD Captain ABRAHAM SANABRIA; Commanding Officer of the 77th Precinct; Deputy Inspector JOHN BUTTACAVOLI; and the defendants whose names and Shield numbers are currently unknown and identified herein as JOHN DOE and JANE ROE Captains, Police Officers and Sergeants, are and were at all relevant times herein, duly appointed and acting officers, servants, employees and agents of defendant CITY and/or NYPD, a municipal agency of defendant CITY.

8. The individually named defendants are and were, at all times relevant herein, acting under color of state law in the course and scope of their duties and functions as officers, agents, servants, and employees of defendant CITY, were acting for, and on behalf of, and with the power and authority vested in them by defendant CITY, and NYPD, and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

9. Defendant NYPD Detective ANTHONY J. CAROZZA, NYPD Captain ABRAHAM SANABRIA; NYPD CAPTAIN(S), OFFICER(S) and NYPD SERGEANT(S) JOHN DOE(S) 1-4 and JANE ROE(S) 1-4; Commanding Officer of 77th Precinct; and, Deputy Inspector JOHN BUTTACAVOLI, are sued individually as well as in their official capacities.¹

¹ The Corporation Counsel of the City of New York is hereby placed on notice that Plaintiff intends to amend her Complaint with the true names and shield and/or badge numbers of the individually named defendants herein referred to as John Doe(s) and Jane Roe(s); Corporation Counsel should prepare its defenses as Plaintiff intends to serve the individually named defendants.

10. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

NOTICE OF CLAIM

11. On September 25, 2018, and within ninety days after the claim arose, Plaintiff caused a Notice of Claim to be served upon defendant CITY.

12. Plaintiff filed her Notice of Claim by delivering copies of the notices to the persons designated by law as a person to whom such claims may be served.

13. The Notice of Claim was in writing, sworn to, and contained the name and address of Plaintiff.

14. The Notice of Claim set out the nature of the claim, the time when the claim and the place where and manner which the claim arose, and the damages and injuries claimed to have been sustained by Plaintiff.

15. Defendant CITY has neglected and failed to adjust the claims with the statutory time period.

16. This action is commenced within one year and 90 days of the incidents complained of.

STATEMENT OF FACTS

17. On July 19, 2018, Plaintiff, a uniformed New York City School Safety Agent assigned to Intermediate School 33 (I.S. 33), was called to the 77th Precinct located at 127 Utica Avenue, Brooklyn, New York 11213.

18. Upon arriving, Plaintiff was placed into an interrogation room for hours and questioned about an accusation laid against her by her estranged mother in May 2018.

19. Despite denying the allegation, and not being presented with any evidence of her alleged wrongdoing, including pictures, statements, or other evidence, Plaintiff was arrested and transported to a holding cell.

20. The unlawful, illegal and humiliating arrest was conducted in view of other members of the New York City Police Department, which Plaintiff is a sworn member of.

21. Plaintiff spent several hours in the holding cell before being transported to Central Booking as a prisoner in a police vehicle.

22. Plaintiff waited for hours more before being arraigned in the afternoon of July 20, 2018.

23. Plaintiff was prosecuted on false criminal charges, which required her presence at more than a half-dozen court appearances to defend against them.

24. Plaintiff also continues to face an internal investigation regarding these false charges which have damaged her reputation and career.

FIRST CAUSE OF ACTION

UNDER 42 U.S.C. SECTION 1983

False Arrest, Malicious Prosecution,

Failure to Intervene, Fabrication of Evidence and Due Process Violations

NYPD Detective Anthony J. Carozza, (Shield # unknown); NYPD Captain Abraham Sanabrios (Shield # unknown); NYPD Captains John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Officers John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Sergeants John Doe(s) 1-4 and Jane Roe(s) 1-4; Commanding Officer of the 77th Precinct (Shield # unknown); NYPD Deputy Inspector John Buttacavoli (Tax ID #918799)

25. Plaintiff incorporates each and every allegation and averment set forth in paragraphs "1" through "24" of this Verified Complaint as though fully set forth herein.

26. The conduct of the individually named defendant officers as described herein, amounted to false arrest, excessive use of force, failure to intervene, fabrication of evidence and violation of due process rights.

27. Such conduct violated Plaintiff's rights under 42 U.S.C. Section 1983 and the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution.

28. Consequently, Plaintiff has been damaged and hereby demands compensatory and

punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

SECOND CAUSE OF ACTION
UNDER 42 U.S.C. SECTION 1983
Failure to Train and Municipal Policy
Defendant City of New York

29. Plaintiff incorporates each and every allegation and averment set forth in paragraphs "1" through "28" of this Verified Complaint as though fully set forth herein.

30. Defendant CITY, acting through NYPD, had actual and/or *de facto* policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligations to effect an arrest only when probable cause exists for such arrest.

31. Defendant CITY, acting through the NYPD, had actual and/or *de facto* policies, practices, customs and/or usages of wrongfully arresting, assaulting and or maliciously prosecuting individuals on the pretext that they were involved in some crime or offense.

32. The existence of the unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against defendant CITY in the state and federal courts.

33. Defendant CITY maintained the above described policies, practices, customs and/or usages knowing fully well that the policies, practices, customs or usages lead to improper conduct by its police officers and employees. In failing to take any corrective actions, defendant CITY acted with deliberate indifference, and its failure was a direct and proximate cause of Plaintiff's injuries as described herein.

34. By these actions, defendants have deprived the Plaintiff of rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as secured through 42 U.S.C. Section 1983.

THIRD CAUSE OF ACTION

42 U.S.C. SECTION 1985

NYPD Detective Anthony J. Carozza, (Shield # unknown); NYPD Captain Abraham Sanabrios (Shield # unknown); NYPD Captains John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Officers John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Sergeants John Doe(s) 1-4 and Jane Roe(s) 1-4; Commanding Officer of the 77th Precinct (Shield # unknown); NYPD Deputy Inspector John Buttacavoli (Tax ID #918799)

35. Plaintiff incorporates each and every allegation and averment set forth in paragraphs "1" through "34" of this Verified Complaint as though fully set forth herein.

36. In an effort to find fault to use against Plaintiff, defendant officers conspired among themselves and conspired with other individuals to deprive Plaintiff of her constitutional rights secured by U.S.C. Section 1983 and by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and took numerous overt steps in furtherance of such conspiracy as set forth above.

37. Moreover, the defendant officers engaged in a conspiracy designed to deprive Plaintiff of her constitutional and federal rights in violation of 42 U.S.C. Section 1985.

38. As a result of the foregoing, Plaintiff was deprived of her liberty and suffered psychological and emotional injury, loss of income, other costs and expenses, and was otherwise damaged and/or injured.

FOURTH CAUSE OF ACTION

NEW YORK STATE LAW

False Arrest and False Imprisonment

NYPD Detective Anthony J. Carozza, (Shield # unknown); NYPD Captain Abraham Sanabrios (Shield # unknown); NYPD Captains John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Officers John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Sergeants John Doe(s) 1-4 and Jane Roe(s) 1-4; Commanding Officer of the 77th Precinct (Shield # unknown); NYPD Deputy Inspector John Buttacavoli (Tax ID #918799)

39. Plaintiff incorporates each and every allegation and averment set forth in paragraphs “1” through “38” of this Verified Complaint as though fully set forth herein on July 19, 2018.

40. Plaintiff’s unlawful detention and arrest was condoned by NYPD Detective Anthony J. Carozza, NYPD Captain Abraham Sanabrios, NYPD Captain(s) John Doe(s) 1-4 and Jane Roe(s) 1-4, NYPD Sergeants John Doe(s) 1-4, NYPD Police Officer(s) John Doe(s) 1-4 and Jane Roe(s) 1-4, Commanding Officer of the 77th Precinct, and NYPD Deputy Inspector John Buttacavoli.

41. As a result of the foregoing, Plaintiff was deprived of her liberty and suffered psychological and emotional injury, loss of income, other costs and expenses, and was otherwise damaged and/or injured.

FIFTH CAUSE OF ACTION
NEW YORK STATE LAW
Respondent Superior Liability
Defendant City of New York

42. Plaintiff incorporates each and every allegation and averment set forth in paragraphs “1” through “41” of this Verified Complaint as though fully set forth herein.

43. The conduct of NYPD Detective Anthony J. Carozza, NYPD Captain Abraham Sanabrios, NYPD Captain(s) John Doe(s) 1-4 and Jane Roe(s) 1-4, NYPD Sergeants John Doe(s) 1-4, NYPD Police Officer(s) John Doe(s) 1-4 and Jane Roe(s) 1-4, Commanding Officer of the 77th Precinct, and NYPD Deputy Inspector John Buttacavoli, occurred while he or she was on duty and in uniform, and/or in and during the course and scope of his or her duties and functions as a member of NYPD, and while acting as an agent and employee of defendant CITY, clothed with and/or invoking state power and/or authority and, as a result, defendant CITY is liable to Plaintiff

pursuant to the state common law doctrine of *respondeat superior*.

44. As a result of the foregoing, Plaintiff was deprived of her liberty and suffered psychological and emotional injury, loss of income, other costs and expenses, and was otherwise damaged and/or injured.

SIXTH CAUSE OF ACTION

NEW YORK STATE LAW

Negligence

NYPD Detective Anthony J. Carozza, (Shield # unknown); NYPD Captain Abraham Sanabrios (Shield # unknown); NYPD Captains John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Officers John Doe(s) 1-4 and Jane Roe(s) 1-4; NYPD Sergeants John Doe(s) 1-4 and Jane Roe(s) 1-4; Commanding Officer of the 77th Precinct (Shield # unknown); NYPD Deputy Inspector John Buttacavoli (Tax ID #918799)

45. Plaintiff incorporates each and every allegation and averment set forth in paragraphs “1” through “44” of this Verified Complaint as though fully set forth herein.

46. The defendants, jointly and severally, negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of the defendants was the direct and proximate cause of injury and damage to Plaintiff and violated her statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

47. As a result of the foregoing, Plaintiff was deprived of her liberty and suffered psychological and emotional injury, loss of income, other costs and expenses, and was otherwise damaged and/or injured.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the defendants on all claims pleaded herein:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;

- d. Costs and interest and attorneys' fee
- e. Such other and proper relief as this Court may seem just and equitable and proper.

Dated: New York, New York
September 27, 2019

A large, stylized handwritten signature in black ink, appearing to be 'PTL', is written over a horizontal line.

THE LAYTON LAW FIRM, PLLC

By: Paul Thomas Layton, Esq.

Attorneys for Plaintiff(s)

Office & PO Address

30 Vesey Street, Suite 1801

New York, New York 10007

(917) 923-4287

laytonlaw10007@gmail.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
LAZETTE WATKINS,

Plaintiff,

Index No.:

Date Filed:

- against -

CITY OF NEW YORK; and, NYPD Detective
ANTHONY J. CAROZZA, Shield # unknown,
Individually and in his Official Capacity; and, NYPD
Captain ABRAHAM SANABRIA, Shield # unknown,
NYPD Captain(s) John Doe(s) 1-4 and Jane Roe(s)
1-4, Individually and in Their Official Capacities;
NYPD Police Officer(s) John Doe(s) 1-4 and Jane
Roe(s) 1-4, Individually and in Their Official
Capacities; and, NYPD Sergeant(s) John Doe(s) 1-4
and Jane Roe(s) 1-4, Individually and in their Official
capacities, and, Commanding Officer of 77th Precinct
Individually and in his/her Official Capacity; and,
NYPD Deputy Inspector John Buttacavoli, Tax ID
#918799, Individually and in his Official Capacity,

Defendants.

-----X
ATTORNEY VERIFICATION

Paul Thomas Layton, an attorney at law, duly admitted to practice in the Courts of this
State, affirms under the penalties of perjury and pursuant to CPLR 2106 that:

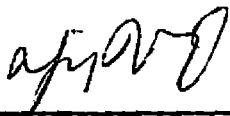
I am the owner of The Layton Law Firm, PLLC, the attorneys for the Plaintiff in the within
matter.

I have read the foregoing Verified Complaint and know the contents thereof, and upon
information and belief, I believe the matters alleged therein to be true.

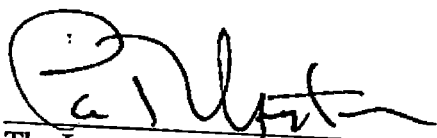
The reason this verification is made by affirmant and not by the Plaintiff is that the Plaintiff
herein is not currently in the county in which Plaintiff's attorney maintains his offices

Dated: New York, New York
September 27, 2019

Sworn to before me on this day 27th
of the month September, 2019



YASIRY VELASQUEZ
COMMISSIONER OF DEEDS CITY OF NEW YORK
Queens County
LIC. # 4-10169
My Commission Expires January 01, 2021



The Layton Law Firm, PLLC
By: PAUL THOMAS LAYTON, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index No.:

LAZETTE WATKINS,**Plaintiff,****- against -**

**CITY OF NEW YORK; and, NYPD Detective
ANTHONY J. CAROZZA, Shield # unknown,
Individually and in his Official Capacity; and, NYPD
Captain ABRAHAM SANABRIA, Shield # unknown,
NYPD Captain(s) John Doe(s) 1-4 and Jane Roe(s) 1-4,
Individually and in Their Official Capacities; NYPD
Police Officer(s) John Doe(s) 1-4 and Jane Roe(s)
1-4, Individually and in Their Official Capacities;
and, NYPD Sergeant(s) John Doe(s) 1-4 and Jane Roe(s)
1-4, Individually and in their Official capacities, and,
Commanding Officer of 77th Precinct Individually and
in his/her Official Capacity; and, NYPD Deputy
Inspector John Buttacavoli, Tax ID #918799,
Individually and in his Official Capacity,**

Defendants.**SUMMONS and VERIFIED COMPLAINT**

**Dated: New York, New York
September 27, 2019**

**Signature (Rule 130-1.1-a)
THE LAYTON LAW FIRM, PLLC
PAUL THOMAS LAYTON, ESQ.
Attorney for Plaintiff(s)
Office and Post Office Address, Telephone
30 Vesey Street (Suite 1801)
NEW YORK, NY 10007
917-923-4287**

**Service of a copy of the within is
hereby admitted.**

Dated:.....20.....